

Court No. - 29

Case :- WRIT - C No. - 7602 of 2016

Petitioner :- Babu Ram

Respondent :- M.D., Paschimanchal Vidyut Vitaran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Manoj Kumar Tiwari

Counsel for Respondent :- Nripendra Mishra

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

Babu Ram is before this Court assailing the correctness of the bill for a sum of Rs. 66,625/-.

On the matter being taken up today, Sri Priyabrat Tripathi, Advocate holding brief of Sri Nripendra Mishra, Advocate submitted that the issue that is raised before this Court at the first instance shall be very well looked into under paragraph 6.5 of U.P. electricity Supply Code, 2005 wherein a remedial forum has been provided for settling the dispute pertaining to accuracy of any bills.

Consequently, once the provision of Electricity Act, 2003 read with U.P. Electricity Supply Code 2005 is self contained Act and before us the dispute that is being raised pertaining to bill can be settled under the Act. In view of this, once there is a statutory remedial forum provided for then there is no reason or occasion for us to permit the petitioner to by-pass the aforementioned remedy and to approach this Court directly. However, we leave it open to the petitioner to get the dispute redressed as per provision of paragraph 6.5 of U.P. electricity Supply Code, 2005 that deals with the redressal mechanism.

With these observations, writ petition is **disposed of**.

Order Date :- 23.2.2016

Jaswant